

FOURTH SEMESTER		
Law-530: Industrial Law (Laws Regulating Industrial Relations):		(PAPER – I)

(A) Industrial Disputes Act 1947:

Unit – I

2. Definition:

- (i) Industry
- (ii) Industrial disputes

2. Authorities under the Act:

- (i) Works Committee
- (ii) Labour Court
- (iii) Industrial Tribunal: Its functions & powers.

3. Award and Settlement:

- (i) Definition
- (ii) Publication of Award
- (iii) Commencement
- (iv) Against whom it is binding
- (v) Operation of Award

Unit – II

1. Strike & Lockout:

- (i) Definition
- (ii) Conditions of valid strike & lockout
- (iii) When strike & lockout become illegal
- (iv) Penalty for illegal strike & lockout.

2. Lay Off:

- (i) Definition
- (ii) Lay off compensation

3.. Retrenchment:

- (i) Definition
- (ii) Retrenchment compensation
- (iii) Procedure for Retrenchment

4. Power of Government to refer Disputes for Adjudication

(B) The Trade Union Act 1926:

Unit – III

1. Definition:

- (i) Trade Union
- (ii) Trade disputes

2. Historical development of Trade Union

3. Procedure for registration of Trade Union

4. When registration certificates of Trade Union can be cancelled or withdrawn

5. Power & Functions of Registrar

Unit – IV

1. Privileges & immunities of registered Trade Union

2. Funds of Trade Union:

- (i) Kinds of funds
- (ii) Purpose for which it can be spent

3. Membership and Office-Bearers of Trade Union.

Law-531: Administrative Law		(PAPER – II)
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Unit - I

1. Definition, Nature and Scope and Sources of Administrative Law.
2. Reasons for the growth of administrative law and its importance in modern times.
3. Doctrine of Separation of powers.
4. Rule of Law

Unit - II

1. Delegated legislation: Meaning, types (Classification), reasons of its growth.
2. Constitutional Limits of Delegated Legislation,
3. Control of Delegated Legislation:
 - (i) Parliamentary control
 - (ii) Judicial control
 - (iii) procedural Control

Unit – III

1. Principles of Natural Justice:
 - (i) Rule against bias,
 - (ii) Fair hearing,
 - (iii) Reasoned decisions,
 - (iv) Exclusion of Principles of natural justice
2. Administrative Tribunals:
 - (i) Reasons of its growth,
 - (ii) Its difference from ordinary courts.
 - (iii) Tribunal in wide sense and narrow sense

Unit – IV

1. Judicial control of Administrative Discretions and Actions:
 - (i) Abuse of Discretion,
 - (ii) Failure of exercise discretion
2. Constitutional Doctrines
 - (i) Legitimate expectation,
 - (ii) proportionality and
 - (iii) Public Accountability)
3. Ombudsman: Lokpal and Lokayukta.
4. Tortious Liability of State.

References:

1. American Administrative Law by Bernard Schwartz
2. English Administrative Law by Wade and Phillips
3. Indian Administrative Law by M.P. Jain and S.N. Jain
4. Indian Administrative Law by I.P. Massey
5. Indian Administrative Law by C.K. Takwani
6. Indian Administrative Law by S.P. Sathe
7. Indian Administrative Law by Prof. U.P.D. Kesari
8. Indian Administrative Law by Prof. J.J.R. Upadhyay

Law-532: Interpretation of Statutes and Principles of Legislation		(PAPER – III)
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Unit – I

1. Legislation: Its use and importance
2. Nature & Classification of Statues.
3. Commencement & Operation of Statutes.
4. Repeal of Statues.

Unit – II

1. Meaning & purpose of Interpretation of Statutes; Difference between Interpretation & Construction; Importance of Interpretation of Statutes.
2. Internal aid to Construction and External aid to Construction.

Unit – III

1. General Rules of Interpretation of Statutes:

- (i) Intention of Legislature and the basis & objects of Interpretations
- (ii) Literal Rule,
- (iii) Golden Rule,
- (iv) Mischief Rule,
- (v) Statute Should be read as a whole,
- (vi) Noscitur a Sociis, Ejus dem Generis Generalia Specialibus non derogant,
- (vii) Pari Materia

Unit – IV

1. Interpretation of the Indian Constitution:

- (i) Doctrine of Basic Structure of the Constitution.
 - (ii) Doctrine of Pith & Substance.
 - (iii) Doctrine of Repugnancy.
 - (iv) Doctrine of Residuary Power.
 - (v) Liberal & Broad Interpretation of each list of the 7th Schedule
2. Aims & Object of the General Clause Act 1897.

Law-533: Company Law		(PAPER – IV)
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Unit-I

- 1. Company – Meaning, Characteristics and kinds
- 2. Comparison between Company and Partnership and company and Limited Liability Partnership, Companies (Amendment) Ordinance, 2019, Companies (Amendment) Act 2020.
- 3. Doctrine of corporate personality and lifting the corporate veil.
- 4. Memorandum and Article of Association- Meaning, Contents, Difference between them and Doctrine of indoor management.

Unit-II

- 1. Prospectus – Meaning, Effect of Untrue Statement in Prospectus.
- 2. Share & Share Capital – Meaning, Nature, Kinds.
- 3. Limited liability partnership act- salient features.

Unit – III

- 1. Director –Appointment and Powers.
- 2. Meeting – Requirements for Valid meeting, Kinds of meeting.
- 3. Oppression and mismanagement –Powers of Tribunal and Central Government for redressal of Oppression and mismanagement.

Unit – IV

- 1. Winding up of Company – Mode; Grounds for winding up by Tribunal
- 2. Corporate Social Responsibility and Corporate Criminal Liability
 - (i) Introduction to CSR;
 - (ii) Need for CSR; CSR Sec. 135 under Companies Act, 2013;
 - (iii) Companies (Corporate Social Responsibility Policy) Rules 2014 (CSR Rules, as amended) and Schedule VII of Companies Act, 2013winding up

Recommended Books:

- 1. Company Law by Avtar Singh
- 2. Company Law by Kailash Rai
- 3. Cases and Material on Company Law Hicks, Andrew
- 4. Company Law by R.K. Bangia

Law-534: Gender Justice & Offences Relating to Women		(PAPER – V)
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UNIT – I

1. Women's Rights Jurisprudence: (i) Women rights and Human rights (ii) Empowerment of women, National Policies and Programmes in general
2. Significant international efforts relating to women empowerment

UNIT – II

1. Women and Constitution of India: (i) Preamble (ii) Fundamental rights with special focus on Articles 15(3) and 16(4) (iii) Directive Principles of State Policy and Fundamental Duties
2. Crime against women and Bharatiya Nyaya Sanhita Adhinyam ,2023(i) Sexual Offences, (ii) Dowry death, (iii) Cruelty (v) Bigamy (vi) Deception in marriage & Mock marriage (vii) kidnapping, abducting, or inducing women to compel her marriage, etc .(Viii) Obscenity And offences relating to causing miscarriages

UNIT – III

1. Domestic Violence: Meaning object and Protections provided under Protection of women from Domestic Violence Act, 2005(with latest amendment)
2. Sexual Harassment of Women at Workplace Act 2013

UNIT – IV

1. Protection of Women accused under Bharatiya Nagrik Suraksha Sanhita Adhinyam ,2023 & Bharatiya Sakshya Adhinyam ,2023
2. Salient features of MTP Act, PNDPT – The Pre-conception and Pre-Natal Diagnostic Techniques (Prohibition of Sex Selection) Act 1994,(with latest amendment)
3. 'Immoral Traffic (Prevention) Act 1956, Medical Termination of Pregnancy Act, 1971(with latest amendment)
4. Indecent representation of women (Prohibition) Act 1986

Law-535: Principles of Taxation Laws		(PAPER – VI)
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UNIT – I

1. Tax -Conceptual Aspects (i) Meaning, Types and Purpose of Taxation,(ii) Difference between Tax and Fee,
2. Tax evasion, Tax Avoidance and Tax Planning. Meaning, reasons, it's differences and etc.

UNIT – II

1. Constitutional Aspects –
 - (i) Taxation and right to equality,
 - (ii) No tax without authority of Law (Article-265)
 - (iii) Distribution of Taxing Powers (Article 268-272)
 - (iv) Inter Governmental Tax Immunities,
 - (v) Taxation and freedom to carry trade, commerce and INTERCOURSE.

2. Basic Concepts of GST, Constitutional Amendments relating to GST

UNIT- III

Income Tax Act, 1961

1. Definition - Assessment year, Previous year, Assessee, Meaning of Income, Gross Total Income, Agricultural Income.
2. Residential status of Assessee – Determination of Residential status, Importance in levy of Income Tax
3. Heads of Income –
 - (i) Income from salaries,
 - (ii) Income from house property,
 - (iii) Income from profit and gains from business & profession, Conditions when the incoming is a chargeable under profit and,

(iv) Income from Capital gains, Conditions when the income is chargeable under the Head, Capital Gains,

(v) Income from Other Sources.

UNIT – IV

1. Computation of Income – (i) Clubbing of income, Set off and carry forward of losses,
2. Income Tax Authorities and their powers
3. Procedure for Assessment,
4. Appeal and Revision – (i) Appeal (ii) Revision
5. Penalties, offences & Prosecutions.